

AMENDMENT NO. 2 TO MASTER SUBSCRIPTION AGREEMENT

Archstone Software, Inc. and Vandelay Industries, Inc.

AMENDMENT NO. 2 TO MASTER SUBSCRIPTION AGREEMENT NO. ARC-MSA-2018-0142

This Amendment No. 2 (this “Amendment”) is entered into as of January 22, 2024 (the “Amendment Effective Date”) by and between **Archstone Software, Inc.** (“Archstone”) and **Vandelay Industries, Inc.** (“Customer”) and further amends the Master Subscription Agreement between the Parties dated March 1, 2018, as amended by Amendment No. 1 dated February 15, 2021 (together, the “Agreement”). Capitalized terms not defined in this Amendment have the meanings given in the Agreement.

RECITALS

- A. The Second Term ends on February 29, 2024.
- B. Archstone has released Archstone 9, a re-platformed version of the Services with a redesigned user interface, and proposes to migrate Customer’s Repository to Archstone 9 in connection with a renewal.
- C. Customer wishes to renew the Services for a further three-year term, increase the number of Service Users and Included Storage, and update the Agreement’s data protection and security terms to reflect current law and Customer’s policies.
- D. Archstone wishes to align the Agreement’s renewal notice mechanics with its capacity planning and provisioning cycle.

The Parties therefore agree as follows.

1. Third Term

1.1 The Agreement is renewed for a third term commencing March 1, 2024 and ending February 28, 2027 (the “Third Term”). The Third Term is a Renewal Term for all purposes under the Agreement.

1.2 Following the Third Term, the Agreement renews for successive Renewal Terms of thirty-six (36) months each, unless either Party gives notice of non-renewal in accordance with Section 6.1 of the Agreement as amended by Section 4 of this Amendment. Item 7 of Order Form No. 3 reflects this Renewal Term duration.

2. Order Form No. 3

Order Form No. 2 is superseded in its entirety by Order Form No. 3 attached to this Amendment as Schedule 1, effective March 1, 2024.

3. Fee Adjustments During the Third Term

Section 7.2 of the Agreement is supplemented as follows: the Subscription Fees set out in Order Form No. 3 are fixed for the Contract Year beginning March 1, 2024 and increase by three percent (3%) on March 1, 2025 and March 1, 2026. The final sentence of Section 7.2 of the Agreement is unchanged and continues to govern fee adjustments for any Renewal Term following the Third Term.

4. Renewal Notice

Section 6.1 of the Agreement is amended by deleting the words “at least sixty (60) days before the end of the then-current Initial Term or Renewal Term” and replacing them with “at least one hundred twenty (120) days before the end of the then-current Initial Term or Renewal Term.” Section 1.4 of Amendment No. 1 is amended accordingly.

5. Archstone 9 Migration and Relaunch Program

5.1 Archstone shall migrate Customer’s Repository to Archstone 9 during a mutually agreed weekend window between March 8 and March 24, 2024, in accordance with the migration plan delivered to Customer’s Legal Technology Manager on January 9, 2024. The migration is included in the Subscription Fees.

5.2 Archstone shall deliver a relaunch training program consisting of up to twelve (12) instructor-led sessions of “Archstone 9 Essentials” for Service Users, delivered in person at Customer’s New York office and by video conference, during April and May 2024, at no additional charge. Additional training sessions requested by Customer after May 31, 2024 are Professional Services.

5.3 Archstone shall provide Customer’s administrators with Archstone 9 administrator certification training at no additional charge.

5.4 Customer acknowledges that Archstone 9 replaces the Archstone 8 user interface and that Archstone 8 will not be available after the migration.

6. Data Protection and Security

6.1 A new Exhibit C (Data Processing and Security Addendum), in the form attached to this Amendment as Schedule 2, is added to the Agreement effective March 1, 2024.

6.2 Section 5.5 of the Agreement is amended by adding the following sentence at the end: “The Parties’ respective obligations with respect to personal information are set out in Exhibit C, which controls over this Section 5.5 in the event of conflict.”

6.3 Section 5.3 of the Agreement is amended by adding the following sentence at the end: “Archstone’s security obligations are further described in Exhibit C.”

7. Notices

Section 10.1 of the Agreement is amended by adding the following sentence: “Each Party shall also send a courtesy copy of any notice by email, for Customer to legal-notices@vandelay.example and for Archstone to legalnotices@archstone.example, provided that email alone does not constitute notice.”

8. General

8.1 Except as expressly amended by this Amendment, the Agreement remains in full force and effect. In the event of conflict between this Amendment and the Agreement or Amendment No. 1, this Amendment controls.

8.2 This Amendment may be executed in counterparts and by electronic signature.

IN WITNESS WHEREOF, the Parties have executed this Amendment as of the Amendment Effective Date.

ARCHSTONE SOFTWARE, INC.

By: /s/ Marguerite Dane
Name: Marguerite Dane
Title: Senior Vice President, Sales
Date: January 19, 2024

VANDELAY INDUSTRIES, INC.

By: /s/ Roberto Salinas
Name: Roberto Salinas
Title: Chief Procurement Officer
Date: January 22, 2024
Reviewed: /s/ Sofia Pellegrini, Legal
Technology Manager

SCHEDULE 1: ORDER FORM NO. 3

Customer: Vandelay Industries, Inc., Legal Department **Archstone Account Executive:** Colin Ashby **Order Form Date:** January 22, 2024 **Effective:** March 1, 2024 through February 28, 2027 (the Third Term)

Item	Description	Quantity	Unit Fee	Monthly Fee
Archstone DMS, Enterprise Edition	Cloud document management service on the	240 Service Users	\$47.50 per user per month	\$11,400.00

(Archstone 9)	Archstone 9 platform, including matter-centric workspaces, versioning, full-text and metadata search, security and ethical walls, audit trail, and the Insight Analytics administrator console			
Archstone Mail 9	Outlook add-in for filing email and attachments, with predictive filing	Included	Included	Included
Archstone Mobile 9	iOS and Android applications	Included	Included	Included
Archstone Teams Connector	Microsoft Teams integration	Included	Included	Included
Insight Analytics, Advanced	Per-user usage reporting and export	Included	Included	Included
Included Storage	5 TB (5,120 GB)	Included	Included	Included
Total Monthly Subscription Fee (Contract Year beginning March 1, 2024)				\$11,400.00

Additional terms.

1. Additional Service Users: \$47.50 per user per month, prorated, subject to the three percent (3%) annual adjustments in Section 3 of Amendment No. 2. Reductions per Section 2.2 of the Agreement.

2. Storage overage above Included Storage: \$0.60 per GB per month, measured on the last day of each month and invoiced in arrears.
3. Professional Services not covered by an SOW: \$350 per hour, in half-hour increments, on Customer's prior written request.
4. Support: Standard Help Desk Support per Exhibit B. Premium Support available at \$1,500 per month.
5. Archstone 9 migration and relaunch training per Section 5 of Amendment No. 2 are included.
6. Invoicing: monthly in advance, net 30, per Section 7.1 of the Agreement. Customer purchase order PO-LGL-2024-0187.
7. Renewal Term duration following the Third Term: thirty-six (36) months, per Section 1.2 of Amendment No. 2.
8. Customer acknowledges receipt of Archstone's Subprocessor List dated December 2023.

End of Schedule 1.

SCHEDULE 2: EXHIBIT C TO THE AGREEMENT

DATA PROCESSING AND SECURITY ADDENDUM

This Exhibit C forms part of the Agreement effective March 1, 2024. In the event of conflict between this Exhibit C and the body of the Agreement with respect to personal information or security, this Exhibit C controls.

1. Definitions

"Applicable Data Protection Law" means all laws applicable to the processing of Personal Information under the Agreement, including the EU General Data Protection Regulation (EU) 2016/679 ("GDPR"), the UK GDPR and Data Protection Act 2018, the California Consumer Privacy Act as amended by the California Privacy Rights Act ("CCPA"), and other applicable US state privacy laws. "Personal Information," "Controller," "Processor," "Business," "Service Provider," "Data Subject," and "Processing" have the meanings given in Applicable Data Protection Law. "Security Incident" means any confirmed unauthorized access to, or acquisition, disclosure, or loss of, Customer Data on the Archstone Network.

2. Roles

Customer is the Controller (or Business) and Archstone is the Processor (or Service Provider) of Personal Information contained in Customer Data. Archstone shall Process Personal Information only on Customer's documented instructions, which consist of the Agreement and Customer's use of the Services, and shall not sell, share for cross-context behavioral advertising, or retain, use, or disclose Personal Information for any purpose other than providing the Services.

3. Processing Details

Subject matter: hosting and management of Customer's legal documents and email. Duration: the Term and the Transition Period. Nature and purpose: storage, indexing, search, versioning, access control, and related document management functions. Categories of Data Subjects: Customer's employees and contractors; individuals referenced in Customer's legal documents, including employees of counterparties and third parties. Categories of Personal Information: contact details, employment information, and any Personal Information contained in legal documents and correspondence.

4. Subprocessors

Archstone maintains a list of its Subprocessors, including hosting providers, at the address specified in the Documentation (the "Subprocessor List"). Archstone shall give Customer at least thirty (30) days' written notice before authorizing any new Subprocessor to Process Personal Information. Customer may object on reasonable data protection grounds within that period; if the Parties cannot resolve the objection within thirty (30) days, Customer may terminate the affected Services on written notice and receive a refund of prepaid fees for the period after termination. Archstone shall impose on each Subprocessor data protection obligations no less protective than this Exhibit C and remains liable for their performance.

5. International Transfers

Personal Information of Customer's Service Users located in the European Economic Area and the United Kingdom is hosted in Archstone's EU region (Frankfurt) unless Customer elects otherwise in the administrator console. Any transfer of Personal Information from the EEA or the UK to a country not recognized as providing adequate protection shall be made under the European Commission's Standard Contractual Clauses (Module Two) and the UK International Data Transfer Addendum, which are incorporated by reference.

6. Security Measures

Archstone shall maintain the technical and organizational measures described in this Section and in Archstone's Security Overview document, as updated from time to time provided that no update materially reduces the level of protection:

- (a) encryption of Customer Data in transit using TLS 1.2 or higher and at rest using AES-256; (b) logical segregation of each customer's Repository; (c) role-based access control, multi-factor authentication for all Archstone personnel with access to production systems, and quarterly access reviews; (d) intrusion detection and continuous security monitoring; (e) vulnerability management with remediation of critical vulnerabilities within fifteen (15) days; (f) annual third-party penetration testing; (g) background checks and annual security training for Archstone personnel; (h) business continuity and disaster recovery with a recovery time objective of eight (8) hours and a recovery point objective of one (1) hour; and (i) secure deletion of Customer Data in accordance with Section 6.4 of the Agreement.

7. Certifications and Audit

Archstone shall maintain, throughout the Term, (a) a SOC 2 Type II report covering the Services with a reporting period of no less than nine months, issued at least annually, and (b) ISO/IEC 27001 certification of its information security management system covering the Services. Archstone shall deliver the then-current SOC 2 Type II report and ISO 27001 certificate to Customer within thirty (30) days after each is issued, without request, and shall deliver a bridge letter covering any gap between the end of a SOC 2 reporting period and the issuance of the next report. Customer may, no more than once per Contract Year and on thirty (30) days' notice, conduct or commission an assessment of Archstone's compliance with this Exhibit C, by written questionnaire and review of Archstone's audit reports and policies, and, where Applicable Data Protection Law requires or a Security Incident has occurred, by on-site audit.

8. Security Incident Notification

Archstone shall notify Customer of a Security Incident without undue delay and in any event within forty-eight (48) hours after confirming it. The notice shall describe the nature of the incident, the categories and approximate volume of Customer Data affected, the measures taken, and a contact point, and shall be supplemented as information becomes available. Archstone shall cooperate with Customer's investigation and with any notifications Customer is required to make, and shall bear the reasonable costs of notification and remediation to the extent the Security Incident resulted from Archstone's breach of this Exhibit C.

9. Data Subject Requests and Cooperation

Archstone shall promptly notify Customer of any request from a Data Subject or regulator relating to Personal Information in Customer Data and shall not respond except on Customer's instructions or as required by law. Archstone shall provide reasonable assistance, through the functionality of the Services and otherwise, to enable Customer to respond to such requests and to conduct data protection impact assessments.

10. Return and Deletion

On expiry or termination of the Agreement, Archstone shall return and delete Customer Data in accordance with Section 6.4 of the Agreement.

11. Liability

Each Party's liability under this Exhibit C is subject to Section 9 of the Agreement.

End of Exhibit C.